

Amendment No. 1 to HB0706

Farmer
Signature of Sponsor

AMEND Senate Bill No. 924

House Bill No. 706*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 51, is amended by adding the following as a new part:

41-51-401.

(a) The department of correction shall furnish and provide to the district attorneys general conference a total of five (5) of the criminal investigator positions established by § 16-2-523, initially funded at compensation level 6 and thereafter compensated in accordance with § 8-7-230, to be designated and assigned in accordance with § 16-2-523.

(b) The additional assistant district attorney general positions and criminal investigator positions created pursuant to § 16-2-523 are for the purpose of conducting specialized criminal investigations and prosecutions of any criminal offenses committed or occurring in or related to a state correctional institution, including violations of title 39, chapter 13, parts 1, 2, 3, and 5; title 39, chapter 16, parts 1, 2, 4, 5, and 6; and title 39, chapter 17, part 4. The department of correction shall grant designated assistant district attorneys general and criminal investigators complete access to the premises, books, records, electronic devices, and other evidence of criminal offenses kept or in the custody of the department. A request by the district attorney general must be honored, and the superintendent, director, warden, or employee of any state correctional institution must give full aid, support, and cooperation to the district attorney general in the investigation or prosecution as requested.

41-51-402.

This part does not limit or otherwise impede the discretion in the performance of duties and responsibilities in the allocation of resources available to the district attorney general pursuant to § 8-7-103.

SECTION 2. Tennessee Code Annotated, Title 16, Chapter 2, Part 5, is amended by adding the following as a new section:

16-2-523.

(a)

(1) In addition to positions created under this part, effective July 1, 2025, there are created ten (10) additional assistant district attorney general positions, ten (10) additional criminal investigator positions, and ten (10) additional assistant district public defender positions to be designated in judicial districts as provided in this section and consistent with § 41-51-401.

(2) The district attorneys general conference must use existing funds to cover the costs associated with hiring and employing five (5) of the additional assistant district attorney general positions initially funded at compensation level 5 and thereafter compensated in accordance with § 8-7-226.

(3) The district public defenders conference must use existing funds to cover the costs associated with hiring and employing five (5) of the additional assistant district public defender positions initially funded at compensation level 5 and thereafter compensated in accordance with § 8-14-107.

(b) The additional assistant district attorney general positions, criminal investigator positions, and assistant district public defender positions created and provided pursuant to subsection (a) are designated and assigned in judicial districts containing a state correctional institution, as follows:

(1) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the first judicial district;

(2) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the ninth judicial district;

(3) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the twelfth judicial district;

(4) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the fifteenth judicial district;

(5) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the twentieth judicial district;

(6) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the twenty-second judicial district;

(7) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the twenty-fifth judicial district;

(8) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the twenty-ninth judicial district;

(9) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the thirtieth judicial district; and

(10) One (1) assistant district attorney general position, one (1) criminal investigator position, and one (1) assistant district public defender position are designated and assigned to the thirty-second judicial district.

(c) The number of assistant district attorney general positions, criminal investigator positions, and assistant district public defender positions created by this section, § 16-2-506, or another law is the minimum number of positions authorized in each district. This section or any other law does not prohibit or prevent the employment of additional assistant district attorneys general, criminal investigators, and assistant district public defenders in a particular judicial district, regardless of whether the positions are funded by a state or non-state source, or whether they are specifically enumerated in this section, § 16-2-506, or another law.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.